

Before you sign

Two things to do today, one page to check line by line, and eight answers only you can give — so the plan says what is actually true about your office.

For Lashanda Carter · October 2026

START HERE

Your plan is the right document. It is built on the IRS's own template (Publication 5708) and covers the right ground. Nothing needs rewriting.

It needs about an hour. Do Part 1 today — it takes ten minutes and puts you in a far better position than you are in right now. We can do Parts 2 and 3 together in one sitting.

Part 1. Do these today

Ten minutes. Neither one needs anybody else.

1 Sign it and date it

Section 3, "Authorizing Official", has blank lines for your signature and the date. So does the sign-off at the very end. Both are empty.

Until they are filled in, what you have is a draft, not a plan. The entire legal weight of this document comes from a named person adopting it on a date.

2 Fix the dates so they agree

The top of the plan says **Effective January 2, 2026 · Version 1.0**. The revision history at the bottom says **Version 1.0 – November 2025 – Initial draft**.

Same version, two dates, and the word "draft" sitting in it. Pick one date, use it in both places, and delete the words "initial draft".

Part 2. Is this true?

The most important page in this document. Please mark every line.

WHY THIS ONE MATTERS MORE THAN THE REST

The plan makes promises about how your office runs. If something ever goes wrong — a laptop stolen, an email account broken into, a client’s identity used to file a fake return — this is the first document anyone asks to see.

A plan that promises things you do not do is worse than having no plan at all, because your signature is on it. Without a plan you are simply missing one. With an inaccurate one, there is a signed document showing you knew the standard and said you were meeting it.

So please be blunt. “No” is a completely fine answer — it just means we change the wording, or decide together that it is worth starting to do.

WHAT THE PLAN SAYS	TRUE TODAY?	IF NO – WHAT IS TRUE?
The Office Manager enforces security protocols every day	Yes ☐ No ☐	
IT support manages the technical safeguards	Yes ☐ No ☐	
Security cameras cover the entrance and cash-handling areas	Yes ☐ No ☐	
Anti-virus scans run every week	Yes ☐ No ☐	
Operating systems and software are patched every month	Yes ☐ No ☐	
Encrypted backups run daily, to cloud and an external drive	Yes ☐ No ☐	
Disaster recovery is tested once a year	Yes ☐ No ☐	
Systems can be back up and running within 24 hours	Yes ☐ No ☐	

WHAT THE PLAN SAYS	TRUE TODAY?	IF NO – WHAT IS TRUE?
Every vendor has signed an agreement about data security	Yes ☐ No ☐	
Staff have had background checks	Yes ☐ No ☐	
Staff have signed confidentiality agreements	Yes ☐ No ☐	
Paper records are destroyed with a cross-cut shredder	Yes ☐ No ☐	

Part 3. Answers only you have

Eight blanks. Once these are filled in, I can finish the document.

1. Who is the one person responsible for data security?

A name and a title, not a role. The rule asks for one named individual — in a practice your size that is almost always the owner.

2. Which tax software do you actually use?

Your plan currently says “TaxSlayer/Drake or equivalent”, which is leftover template wording. We need the real product name.

3. Which client portal do you use for documents?

The plan refers to a “secure client portal” without naming one.

4. How long do you keep client records before destroying them?

Section 14 says records are shredded “after the retention period” — but the plan never says how long that period is.

5. If there is a breach, who do you call first?

A name and a phone number. Right now the plan says “notify IRS/clients” with no names, numbers or deadlines, which is no use at eleven at night.

6. Your insurance company, and the claims number

If you hold errors & omissions or cyber cover. If you do not, write “none” — that is worth knowing too.

7. Where are paper client files kept, and who has a key?

8. Roughly how many clients do you have?

Under 5,000 means four of the heavier written requirements do not apply to you. Worth confirming, because it saves work.

Part 4. I will add these

Nothing for you to do here. Listed so you know they are covered.

- **The FTC Safeguards Rule.** This is the federal rule that actually requires you to have a plan. Your copy names the older law it comes from but not the rule itself — which is the one citation that should not be missing.
- **Michigan’s Social Security Number Privacy Act.** Your copy names Michigan’s breach-notification law, but not this separate one. Both apply to you.
- **A real breach-response page** — who to call, in what order, with phone numbers and the legal deadlines. The current version is a five-word diagram.
- **The Staff Acknowledgment Form.** Your plan refers to it four times but does not include it. It is the page each preparer signs to confirm they have read the plan, and it is what the onboarding page on the website records.

Part 5. When

THE ORDER TO DO IT IN

Today: sign and date it (Part 1). That alone moves you from “no plan” to “a plan”.

This week: one hour together on Parts 2 and 3, and I finish Part 4.

Then: put the signed PDF in Google Drive, set sharing to “anyone with the link can view”, and send me the link. I will connect it to the onboarding page so your preparers can read it and sign off themselves.

Deadline that matters: finished before December. That is when the first Academy group completes and starts working on real client files — and every one of them has to have signed this before they touch a client’s return.

ONE MORE THOUGHT

I am not a lawyer, and this is a read against the IRS template and the federal rule rather than legal advice. If you would like someone who does this professionally to look it over before you sign, an hour of their time is small next to what a mistake here costs.

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Prepared as practice guidance, not legal advice. The two rules referred to throughout — the FTC Safeguards Rule and Michigan’s Social Security Number Privacy Act — are summarised for working purposes; confirm the current text before relying on it.